

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.

(Complainant)

vs.

Top Shipping Systems, Corp.

(Respondent)

COMPLAINANT'S MOTION FOR CONFIDENTIAL TREATMENT OF
AUGUST 25, 2026 APPENDIX AND CONSOLIDATED SUPPORTING REPARATIONS
EVIDENCE

PUBLIC FILING - CONTAINS NO CONFIDENTIAL MATERIAL

Complainant FormuKleen, Inc. moves under 46 C.F.R. § 502.5(b), paragraphs 32-38 of the June 23, 2025 Initial Order, and the November 21, 2025 Protective Order for confidential treatment of specified material in its August 25, 2026 Complainant's Appendix to Opening Brief and Proposed Findings of Fact, CX-0112 through CX-0207, and its Consolidated Supporting Reparations Evidence, CX-0208 through CX-0307.

RELIEF REQUESTED

Complainant requests acceptance of the paired confidential and public versions of both appendix volumes. In the main Appendix, confidentiality is requested only for the material identified in the comprehensive Bates table below and marked in the confidential version, with corresponding redactions in the public version. In the Supporting Reparations Evidence, confidentiality is requested

for each evidentiary page from CX-0208 through CX-0307 in its entirety, with one corresponding public exclusion page for each protected CX page.

Complainant's Opening Brief, Proposed Findings of Fact, and Schedule of Actual Injury remain public. They disclose the aggregate damages claim without reproducing the protected transaction-level information contained in the appendices.

GOOD CAUSE

The main Appendix contains limited non-public commercial and personal information within subject-shipment communications, delivery documents, invoices, and related records. The confidential version marks the protected material, and the public version redacts the corresponding material while leaving the balance of each page public.

The Supporting Reparations Evidence consists of vendor invoices, account and payment records, storage records, customer sales records, the impacted-orders calculation, a government-charge record, customer communications, and related damages-source documents. Every evidentiary page from CX-0208 through CX-0307 contains protected supplier, customer, third-party, product, quantity, pricing, purchasing, payment, sales, order, transaction, or accounting information.

For CX-0208 through CX-0307, field-by-field marking is not feasible because the protected commercial information appears throughout the source pages and, on many pages, constitutes substantially all of the substantive content. Consistent with 46 C.F.R. § 502.5(a)(2)(iii) and Initial Order paragraph 36, the public version therefore substitutes one page-specific notice for each protected evidentiary page. The confidential and public supporting volumes remain the same length and preserve identical CX numbering.

The request is narrowly tailored. Complainant's public Schedule of Actual Injury states \$57,734.17 in direct actual injury, \$83,092.97 in lost profit, and \$140,827.14 in total actual injury. Confidential treatment therefore does not conceal the nature or aggregate amount of the reparations claim.

COMPREHENSIVE CONFIDENTIALITY REQUEST

CX Range	Description	Treatment Requested	Specific Basis
CX-0159 to CX-0161	CHSU supplier, ISF, and release communications	Marked material only	Non-public shipping and transaction identifiers and personal information.
CX-0163 to CX-0168	BSIU release, storage, warehouse, and arrival communications	Marked material only	Non-public shipping, payment, storage, and transaction information and personal information.
CX-0170	Internal account-hold communication	Marked material only	Non-public account, payment, and transaction information.
CX-0172 to CX-0173	Credit-suspension and duty-payment communications	Marked material only	Non-public credit, duty, account, payment, and transaction information.
CX-0175 to CX-0176; CX-0178 to CX-0181	Delivery orders and motor-carrier bills of lading	Marked material only	Non-public shipment, product, quantity, identifier, and transaction information.
CX-0183 to CX-0184	TSS subject-shipment invoices	Marked material only	Non-public pricing, charge, account, shipment, and transaction information.
CX-0194 to CX-0204	Subject-shipment logistics communications	Marked material only	Non-public shipment, operational, identifier, and transaction information.
CX-0205 to CX-0207	Supplier booking communications	Marked material only	Non-public supplier, booking, shipping, and transaction information.

CX-0208 to CX-0307	Consolidated supporting reparations evidence	Entire individual pages	Every page contains non-public supplier, customer, third-party, product, quantity, pricing, purchasing, payment, sales, order, transaction, or accounting information. Field-level marking is not feasible. The public version contains one matching exclusion page for every protected CX page.
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CONCLUSION

Complainant requests confidential treatment of the material identified above, acceptance of the paired confidential and public versions of the main Appendix and Supporting Reparations Evidence, and acceptance of the page-for-page public placeholders for CX-0208 through CX-0307.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

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Signature:  _____

Date: 08/25/2026

CERTIFICATE OF SERVICE

I certify that on August 25, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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